

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. RG PC DLNKH

STIPULATION AND ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
CYNTHIA B. HANCHETT, M.A., LPC, LICENSE NO. 6443

Respondent.

IT IS HEREBY STIPULATED and agreed by and between the State Board of
Licensed Professional Counselor Examiners ("Board") and Cynthia Hanchett, M.A., LPC
("respondent"), as follows:

1. The Board has jurisdiction over the person of respondent and the subject matter set forth in this stipulation and order.
2. The State board of Licensed Professional Counselor Examiners granted respondent a license to practice professional counseling in Colorado on April 23, 1993. Respondent has been licensed to practice professional counseling since that date and was so licensed at all time relevant to the events resulting in this stipulation and order. She holds license number 6443.
3. On or about July 10, 2001, the Board received a complaint regarding respondent's practice of professional counseling and psychotherapy alleging practice below generally accepted standards, practice outside her area of training, experience or competence, dual relationships, failure to refer a client, and failure to consult. All of these alleged actions are violations of the Colorado Mental Health Statute.
4. Following review of the complaint, response, and investigation, the Board referred this matter to the Attorney General's office for disciplinary action regarding respondent's license to practice professional counseling in Colorado.
5. Respondent understands she has the right to a formal disciplinary hearing, pursuant to C.R.S. § 12-43-224, with respect to the complaints filed against her. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to a hearing; relieves the Board of its burden of

proving the facts and conduct contained in the complaint; gives up her right to present a defense by oral and documentary evidence; and gives up her right to cross-examine witnesses. Respondent understands that, pursuant to C.R.S. § 12-43-224(5), she has the right to appeal the Board's final order to the Court of Appeals. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to appeal or otherwise to contest the validity of the final Board order entered pursuant to this stipulation.

6. Respondent desires to resolve this matter by voluntarily surrendering her license to practice professional counseling in Colorado. Respondent is surrendering her license. It is understood that the Board order entered pursuant to this stipulation will revoke respondent's license to practice professional counseling in Colorado and she will be rendered ineligible to apply for any license, registration, or listing issued under Article 43, Title 12 of Colorado Revised Statutes until more than three years have elapsed from the date of the surrender of license, as provided in C.R.S. § 12-43-224(3)(a)(II).

7. Respondent hereby freely and voluntarily relinquishes and surrenders her license as a Licensed Professional Counselor in the State of Colorado.

8. Respondent enters into this stipulation and order voluntarily, and after being fully advised both as to her right to a hearing and as to the consequences of this stipulation and order.

9. This Board order possesses the same force and effect as an order entered as a result of a formal disciplinary proceeding held pursuant to C.R.S. §§ 12-43-224 and 24-4-105, and it revokes respondent's professional counselors license and is considered an order of revocation.

10. No agreement, understanding, representation, or interpretation not contained in this stipulation and order may be used to vary or to contradict its terms.

11. Each provision of this stipulation and order is separate. In the event of litigation involving compliance with the terms of this stipulation and order, the issues will be restricted to those issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the stipulation and order; and the parties will be obligated by the Board-construed or judicially-constructed parts of the stipulation and order as if they were part of the original stipulation and order.

12. This stipulation and order shall take effect on acceptance and signature by the Board.

13. This stipulation and order is a public record.

Cynthia B. Hanchett
CYNTHIA B. HANCHETT

DATED: 2/10/02

AGREED, SIGNED, AND ORDERED this 8th day of February, 2002

STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS

Thomas D. Graves

THOMAS GRAVES, LPC
Board Chair

KEN SALAZAR
Attorney General



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AG ALPHA:
AG File:

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